IN-HOME SENIOR CARE · HUMAN RESOURCES

Live-In Caregiver Assignment Acknowledgment and Reasonable Agreement

Purpose

This Live-In Caregiver Assignment Acknowledgment and Reasonable Agreement ("Agreement") establishes the terms, conditions, expectations, and mutual understanding governing live-in caregiver assignments accepted by employees of Troutman Enterprises, LLC d/b/a Caring Companions In-Home Senior Care ("Caring Companions" or the "Company").

This Agreement supplements the Employee Handbook, Employment Agreement, Job Description, Care Plans, compensation notices, and all other Company policies. In the event of a conflict between this Agreement and applicable federal, state, or local law, applicable law shall govern.

Nothing contained in this Agreement creates a contract of employment, guarantees continued employment, guarantees any assignment, guarantees any minimum number of hours, or alters the at-will employment relationship between the employee and Caring Companions.

01 Written Reasonable Agreement

The Fair Labor Standards Act ("FLSA") permits employers and live-in domestic service employees to enter into a reasonable written agreement regarding compensable working time, scheduled off-duty time, meal periods, and scheduled sleep periods.

By signing this Agreement, the employee acknowledges that this document constitutes the written reasonable agreement between the employee and Caring Companions regarding the scheduling of live-in assignments, off-duty periods, overnight sleep periods, and the reporting of hours worked.

The employee understands that this Agreement is intended to comply with applicable federal wage and hour laws governing live-in domestic service employees and agrees to accurately report all hours actually worked, including any work performed during scheduled off-duty periods or scheduled sleep periods.

02 Nature of Live-In Assignments

A live-in caregiver temporarily resides in a client's private residence while providing non-medical personal care, companionship, supervision, and other authorized services in accordance with the client's individualized Care Plan.

Live-in care is intended for clients whose needs can be safely met within the Company's live-in staffing model. Not every client is appropriate for live-in services, and not every caregiver is required to accept a live-in assignment.

Although residing in the client's home during an assignment, the caregiver remains an employee of Caring Companions and is expected to maintain professional conduct, confidentiality, professional boundaries, and compliance with all Company policies at all times.

03 Voluntary Acceptance of Live-In Assignments

Unless otherwise specified in the employee's written offer of employment, acceptance of live-in assignments is voluntary.

Each assignment is based upon numerous factors, including but not limited to:

- Client care needs
- Client safety
- Home environment
- Caregiver qualifications
- Caregiver availability
- Family participation
- Staffing needs
- Operational requirements

The Company reserves the right to assign, reassign, modify, suspend, or discontinue any live-in assignment at any time. Acceptance of one live-in assignment does not guarantee future live-in assignments.

04 Compensation

Compensation for live-in assignments is established separately from this Agreement and communicated to employees through their written Job Offer, Compensation Notice, assignment confirmation, or other written communication issued by Caring Companions.

> Employees assigned to the Live-In Caregiver position are currently compensated **$250.00 per twenty-four (24) hour live-in assignment**, subject to applicable federal and state wage and hour laws.

This compensation is based upon the Company's live-in staffing model, which includes:

- A scheduled four (4) hour off-duty relief period during each twenty-four (24) hour assignment;
- A scheduled overnight sleep period when the requirements of applicable law are satisfied; and
- Accurate reporting of all hours actually worked.

Compensation rates may be modified by the Company at any time in accordance with applicable law. Employees will be notified in writing before any change in compensation becomes effective.

05 Compensation and Reasonable Agreement Regarding Hours Worked

Employee understands and agrees that Caring Companions' live-in caregiver compensation is based upon a scheduled twenty-four (24) hour live-in assignment that includes:

12 hrs	4 hrs	8 hrs
Scheduled compensable working hours	Off-duty relief period — unpaid	Overnight sleep period — unpaid

The employee understands and agrees that the scheduled four (4) hour off-duty relief period and the scheduled overnight sleep period are not considered scheduled working time and are excluded from the employee's regularly scheduled compensable hours, provided the employee is completely relieved of duties during the relief period and the requirements of applicable law regarding sleep time are satisfied.

The current compensation for a live-in assignment is $250.00 for each scheduled twenty-four (24) hour live-in assignment, which is based upon the employee's scheduled twelve (12) compensable working hours and the reasonable written agreement contained in this document regarding scheduled off-duty and sleep periods.

The employee understands and agrees that:

- the scheduled four (4) hour relief period is intended to be unpaid off-duty time;
- the scheduled overnight sleep period is intended to be unpaid sleep time consistent with applicable law;
- any work actually performed during a scheduled relief period or scheduled sleep period must be immediately reported to Caring Companions;
- all compensable work performed during scheduled relief periods or overnight sleep periods will be paid in accordance with applicable federal and state wage and hour laws; and
- Caring Companions will adjust payroll whenever additional compensable work is required.

The employee further agrees to accurately report all hours worked and understands that failure to report work performed during scheduled off-duty or sleep periods may result in inaccurate payroll and may subject the employee to disciplinary action.

06 Scheduled Daily Relief Period

To promote employee well-being, provide high-quality client care, and comply with applicable wage and hour laws, Caring Companions schedules a daily four (4) hour off-duty relief period for every live-in caregiver.

The Company is committed to ensuring that caregivers have a bona fide opportunity to be completely relieved of all work responsibilities during this scheduled off-duty period. The four-hour relief period will be provided through one or more of the following methods:

- The client is independently safe to remain alone in accordance with the Care Plan.
- A family member, responsible party, or other authorized individual assumes responsibility for the client's care.
- Caring Companions schedules another qualified caregiver to relieve the live-in caregiver.

The employee understands that the scheduled relief period is flexible and may occur at different times from day to day depending upon:

- Client needs;
- Medical appointments;
- Family availability;
- Staffing schedules;
- Emergencies; and
- Other operational considerations.

Except in unforeseen emergencies or unusual circumstances affecting client safety, Caring Companions intends to provide a total of four (4) hours of scheduled off-duty time during every twenty-four (24) hour live-in assignment.

During the scheduled relief period, the caregiver is relieved of all caregiving responsibilities and may leave the client's residence or remain on the premises for personal pursuits, provided doing so does not conflict with the Care Plan or other Company instructions.

If the caregiver performs work during the scheduled relief period or is unable to receive the scheduled four-hour off-duty period, the caregiver must notify the office as soon as reasonably possible so the Company may accurately compensate all hours worked, evaluate staffing needs, and maintain compliance with applicable wage and hour laws.

07 Meal Periods

Meal periods are generally intended to occur during periods when the caregiver is not actively providing services.

When the caregiver is completely relieved of duties during a meal period, the meal period may be treated as non-working time consistent with applicable law. If the caregiver is required to actively perform work during a meal period, the caregiver shall accurately report the time worked.

The caregiver agrees to notify the Company of any circumstances that prevent meaningful meal periods so that appropriate staffing adjustments may be considered.

08 Overnight Sleep Period

Caring Companions schedules live-in assignments with the expectation that caregivers will have the opportunity to obtain a bona fide overnight sleep period in accordance with applicable federal wage and hour laws.

The Company recognizes that client needs occasionally require overnight assistance. However, the live-in care model is intended for clients whose overnight needs generally allow caregivers to obtain meaningful rest while remaining available to respond to occasional assistance requests.

Employees understand that all work performed during a scheduled overnight sleep period must be accurately reported and will be compensated in accordance with applicable law.

> In plain terms: any time the caregiver gets up during the overnight sleep period to assist the client or perform any work is **paid working time**, even though the remainder of the sleep period is unpaid. Each such interruption must be recorded on the daily timekeeping sheet so that it is paid. If interruptions prevent the caregiver from obtaining at least five (5) consecutive hours of sleep on a given night, the entire sleep period for that night is treated as paid working time in accordance with applicable law.

Nothing in this Agreement authorizes a caregiver to ignore or delay responding to a client emergency or immediate safety concern.

09 Overnight Sleep Standard

Caring Companions administers its live-in program in accordance with the Fair Labor Standards Act (FLSA) and applicable U.S. Department of Labor guidance regarding sleep time for live-in domestic service employees.

The Company expects that caregivers assigned to live-in services will usually have the opportunity to obtain at least five (5) consecutive hours of uninterrupted sleep during their scheduled overnight sleep period.

The employee agrees to promptly notify the office whenever:

- overnight interruptions prevent five (5) consecutive hours of sleep;
- overnight care needs significantly increase;
- the client's condition changes;
- repeated overnight assistance becomes necessary; or
- the caregiver believes the client may no longer be appropriate for live-in services.

Prompt reporting allows Caring Companions to evaluate staffing needs, maintain compliance with wage and hour laws, and provide the safest level of care for both the client and caregiver.

10 Client Qualification for Live-In Services

Live-in services are appropriate only when the client's overnight care needs remain consistent with the Company's live-in staffing model.

As part of its quality assurance and wage and hour compliance program, Caring Companions monitors overnight interruptions reported by caregivers.

If overnight interruptions prevent the caregiver from obtaining at least five (5) consecutive hours of uninterrupted sleep during one-half (50%) or more of the caregiver's overnight shifts with a particular client, Caring Companions will evaluate whether the client continues to qualify for live-in services.

If the Company determines that the client's overnight care needs routinely exceed the expectations of the live-in program, the Company may:

- transition the client to hourly care;
- schedule awake overnight caregivers;
- provide additional staffing;
- modify the staffing schedule;
- revise the Care Plan; or
- implement another staffing arrangement appropriate to the client's needs.

The determination regarding whether a client remains appropriate for live-in services shall be made solely by Caring Companions after considering caregiver reports, client needs, safety concerns, applicable laws, and operational requirements.

11 Sleeping Accommodations

To participate in the Caring Companions Live-In Care Program, the client must provide the caregiver with private sleeping quarters in a home-like environment.

The caregiver shall be provided with a bedroom reserved exclusively for the caregiver during the assignment. The caregiver shall not be expected to share a bedroom with:

- the client;
- another caregiver;
- family members;
- visitors; or
- any other individual.

The private sleeping area should include, at a minimum:

- a clean bed with a mattress in good condition;
- reasonable heating and cooling;
- adequate lighting;
- access to bathroom facilities;
- access to kitchen facilities;
- a dresser, closet, or other reasonable storage for personal belongings; and
- a reasonable degree of privacy.

If a client cannot provide appropriate sleeping accommodations, the assignment may not be appropriate for the Company's live-in program.

12 Personal Bedding

For personal comfort and hygiene, caregivers are encouraged to bring their own personal bedding during live-in assignments, including:

- bed sheets;
- pillows;
- blankets or comforters; and
- any additional personal items desired for sleeping comfort.

The caregiver is responsible for maintaining personal bedding and removing personal belongings at the conclusion of each assignment unless other arrangements have been approved by the Company.

13 Timekeeping and Reporting of Hours Worked

Accurate timekeeping is an essential condition of employment. Employees are required to accurately record and report all hours actually worked. This includes, but is not limited to:

- work performed during scheduled relief periods;
- work performed during scheduled overnight sleep periods;
- emergency responses;
- client assistance provided outside the normal schedule; and
- any circumstance that differs from the planned live-in staffing arrangement.

Employees shall never under-report or over-report hours worked. Knowingly submitting false or inaccurate time records, Electronic Visit Verification (EVV) records, or payroll information may result in disciplinary action, up to and including termination of employment.

> To ensure ongoing wage and hour compliance, each live-in caregiver must also complete the **daily paper timesheet** provided by Caring Companions, documenting the caregiver's off-duty relief (break) time and any times the caregiver was awoken during the overnight sleep period. This daily record must be completed accurately and submitted to the office as instructed.

14 Electronic Visit Verification (EVV)

Employees shall comply with all Company Electronic Visit Verification (EVV) policies. Caregivers are responsible for:

- clocking in and out as instructed;
- completing required documentation;
- reporting missed punches immediately;
- accurately documenting services provided; and
- notifying the office whenever corrections are necessary.

Employees understand that intentionally falsifying EVV records constitutes serious misconduct and may result in disciplinary action, termination of employment, repayment obligations, and, when applicable, referral to government agencies.

15 Reporting Changes Affecting Live-In Services

The caregiver shall immediately notify Caring Companions whenever any change occurs that may affect the appropriateness of the live-in assignment. Examples include:

- increased nighttime care needs;
- repeated overnight interruptions;
- safety concerns;
- changes in mobility;
- changes in cognition;
- hospitalization;
- hospice admission;
- new medical equipment;
- family concerns;
- unsafe living conditions; or
- any circumstance affecting the caregiver's ability to safely provide live-in care.

The caregiver understands that prompt reporting allows Caring Companions to reassess the client's needs and determine whether modifications to the staffing plan are necessary.

16 Professional Conduct

While assigned as a live-in caregiver, the employee represents Caring Companions twenty-four (24) hours a day while residing in the client's home. Employees are expected to conduct themselves professionally at all times. The employee agrees to:

- Treat every client with dignity, respect, patience, and compassion.
- Follow the client's authorized Care Plan.
- Maintain professional boundaries.
- Respect the client's preferences, routines, beliefs, and culture.
- Maintain confidentiality in accordance with HIPAA and Company policy.
- Cooperate professionally with family members, healthcare providers, and other authorized individuals.
- Immediately report concerns regarding the client's health, safety, or well-being.

Employees shall not perform services outside their training, outside the Care Plan, or outside Company policy without prior authorization.

17 Respect for the Client's Home

The caregiver understands that they are a guest in the client's private residence. The caregiver agrees to:

- Respect the client's property and belongings.
- Keep the assigned bedroom reasonably clean and orderly.
- Leave the bedroom in good condition at the end of the assignment.
- Use household items only as authorized.
- Follow reasonable household rules communicated by the client or Caring Companions.
- Conserve household utilities and supplies.

- Respect the privacy of the client and family members.

The caregiver shall not:

- Enter areas of the home unrelated to assigned duties without permission.
- Search through personal belongings.
- Borrow or remove client property.
- Use the client's vehicle unless authorized.
- Handle the client's finances except as specifically authorized in the Care Plan.

18 Visitors and Personal Activities

To protect the client's privacy and safety, employees shall not permit unauthorized individuals into the client's home during a live-in assignment. Unless specifically authorized in writing by Caring Companions and the client or responsible party, the following are prohibited:

- Visitors
- Family members
- Friends
- Romantic partners
- Overnight guests
- Children
- Pets

Employees may use personal electronic devices during scheduled off-duty periods provided such use does not interfere with client care, client privacy, or Company policies. Employees shall not:

- Wear headphones while supervising a client.
- Photograph or record the client or residence.
- Post information about clients on social media.
- Conduct personal business that interferes with assigned duties.

19 Meals

Employees may prepare meals for themselves and the client as appropriate during the assignment.

The caregiver shall consume only food or beverages that the client, responsible party, or Company has authorized for caregiver use.

Meal periods are generally intended to occur during scheduled off-duty time or other periods when the caregiver is relieved of active responsibilities. If work is performed during a meal period, the employee shall accurately report the time worked.

20 Documentation and Communication

Accurate documentation is an essential responsibility of every live-in caregiver. Employees shall accurately complete all required documentation, including but not limited to:

- Electronic Visit Verification (EVV)
- Daily care notes
- Observation reports
- Incident reports
- Communication logs
- Other required Company documentation

The caregiver agrees to maintain regular communication with Caring Companions and immediately report any significant change in the client's condition or circumstances.

21 Emergencies

During a live-in assignment, the caregiver shall respond appropriately to emergencies in accordance with Company policy. The caregiver shall immediately notify Caring Companions of:

- Falls
- Injuries
- Medical emergencies
- Hospitalizations
- Missing client
- Fire
- Gas leaks
- Power outages affecting client safety
- Unsafe living conditions
- Suspected abuse, neglect, or exploitation
- Any event affecting the client's health or safety

> When necessary, the caregiver shall immediately contact **911** before notifying the Company.

22 Assignment Changes

The caregiver understands that client needs may change unexpectedly. Accordingly, Caring Companions reserves the right to modify, suspend, or discontinue any live-in assignment due to:

- Hospitalization
- Hospice admission
- Increased care needs
- Safety concerns
- Family requests
- Staffing requirements
- Business necessity
- Any circumstance making live-in services inappropriate

Nothing in this Agreement guarantees any future assignment.

23 Incorporation of Company Policies

This Agreement supplements and incorporates by reference the Company's:

- Employment Agreement
- Employee Handbook
- Job Description
- Code of Ethics
- Professional Boundaries Policy
- HIPAA and Confidentiality Policy
- Electronic Visit Verification (EVV) Policy
- Documentation Policy
- Attendance Policy
- Safety Policies
- Infection Prevention Policies
- Abuse, Neglect, and Exploitation Reporting Policy
- Client Rights Policy
- All other Company policies and procedures

Employees acknowledge that they are responsible for reviewing and complying with the current version of all Company policies.

24 Compliance with Applicable Law

Caring Companions administers its live-in caregiver program in accordance with applicable federal, state, and local employment laws, including the Fair Labor Standards Act (FLSA) and applicable U.S. Department of Labor guidance governing domestic service employees.

The Company reserves the right to modify this Agreement or its live-in policies at any time to maintain compliance with applicable laws and regulations.

25 At-Will Employment

Nothing contained in this Agreement shall be interpreted as:

- a contract of employment;
- a guarantee of continued employment;
- a guarantee of compensation;
- a guarantee of any specific schedule or assignment; or
- a limitation on the Company's right to terminate employment consistent with applicable law.

Employment with Caring Companions remains at will, meaning either the employee or the Company may terminate the employment relationship at any time, with or without notice, and with or without cause, subject to applicable law.

26 Entire Agreement Regarding Live-In Assignments

This Agreement constitutes the entire understanding between Caring Companions and the employee regarding the conditions governing live-in caregiver assignments.

This Agreement supplements, but does not replace, the Employment Agreement, Employee Handbook, or other Company policies.

No verbal statement or representation shall modify this Agreement. Any modification must be in writing and approved by Caring Companions.

EMPLOYEE ACKNOWLEDGMENT

I acknowledge that I have received, read, and understand this Live-In Caregiver Assignment Acknowledgment and Reasonable Agreement.

I understand my responsibilities while accepting live-in assignments and have had the opportunity to ask questions before signing this Agreement.

I agree to comply with this Agreement, the Employee Handbook, my Employment Agreement, my Job Description, and all Caring Companions policies.

I understand that I am responsible for accurately reporting all hours worked, including work performed during scheduled off-duty periods or scheduled sleep periods.

I understand that if a client's care needs routinely exceed the standards of the Caring Companions Live-In Care Program, the Company may modify staffing or transition the client to another level of service.

I understand that my employment with Caring Companions remains at will.

I understand and voluntarily agree that the **$250.00** live-in assignment rate is based upon a scheduled twenty-four (24) hour assignment consisting of twelve (12) scheduled compensable working hours, one scheduled four (4) hour off-duty relief period, and one scheduled eight (8) hour overnight sleep period. I understand that the off-duty relief period and overnight sleep period are intended to be unpaid periods, provided I am relieved of duties and the requirements of applicable law are satisfied. I further understand that I must immediately report any work performed during those periods so that I may be compensated in accordance with applicable law.

EMPLOYEE

Printed Name

Signature

Date

CARING COMPANIONS IN-HOME SENIOR CARE

Representative

Signature

Date